

HOUSE BILL 1849

By Butler

AN ACT to amend Tennessee Code Annotated, Title 2 and  
Title 49, relative to elected superintendents of  
schools.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-2-203(a)(13)(A), is amended by deleting the language "Notwithstanding any other public or private act to the contrary" and substituting instead the language "Unless a county or municipal legislative body has voted to establish the office of elected superintendent of schools pursuant to § 49-2-301(f)".

SECTION 2. Tennessee Code Annotated, Section 49-2-301(a), is amended by deleting the word "Each" and substituting instead the language "Except as provided in subsection (f), each".

SECTION 3. Tennessee Code Annotated, Section 49-2-301, is amended by adding the following new subsections:

(f)

(1) Notwithstanding subsection (a) or chapter 535 of the Public Acts of 1992 to the contrary, a county or municipality operating a school system may establish the office of elected superintendent of schools by a majority vote of the membership of the county or municipal legislative body.

(2)

(A) If the office of elected superintendent of schools is established, then the contractual term of an appointed director of schools must not be abridged by the establishment. If a county or municipality chooses to conduct an election before the expiration of an incumbent

director's contract, then it is the responsibility of the county or municipal legislative body to satisfy any contractual obligation to the incumbent director of schools.

(B) A local board of education shall not appoint or extend the contract or term of a director of schools after the county or municipality establishes the office of elected superintendent of schools, but may appoint a qualified person to serve as acting director until the office of superintendent of schools is filled by the voters.

(3)

(A) The state board of education shall establish minimum requirements for a license of qualification for a superintendent, which must include, at a minimum, the following:

- (i) The applicant must hold a teacher's professional license with endorsement as principal or supervisor of instruction;
- (ii) The applicant must hold a master's degree; and
- (iii) The applicant must have at least five (5) years' experience to include both teaching and administrative experience.

(g) All rights, duties, or powers granted to an appointed director of schools, unless otherwise provided in this title, are the rights, duties, or powers of an elected superintendent for the LEA of a county or city that establishes the office of elected superintendent of schools under subsection (f), and all references to an appointed director of schools are references to an elected superintendent.

(h) An elected superintendent of schools is elected in the general election in August and serves a term of four (4) years.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.